

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JOANNE HESS,

Plaintiff,

-against-

POLICE OFFICER NABIL LAAFAR, Shield No. 15663,
SERGEANT ALEXI SERPANI, Shield No. 3257, POLICE
OFFICER ERIC MILLER, Shield 15667 and POLICE
OFFICER JOHN DOE 1-10,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 28, 2019

Yours, etc.



CAITLIN ROBIN, ESQ.
CAITLIN ROBIN & ASSOCIATES PLLC.
Attorney for Plaintiff
30 Broad Street, Suite 702
New York, New York 10004
(646)-524-6026

TO: POLICE OFFICER NABIL LAAFAR, Shield No. 15663, 68th Precinct, 333 65th Street,
Brooklyn, New York 11220

SERGEANT ALEXI SERPANI, Shield No. 3257, 68th Precinct, 333 65th Street, Brooklyn,
New York 11220

POLICE OFFICER ERIC MILLER, Shield 15667, 68th Precinct, 333 65th Street, Brooklyn,
New York 11220

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JOANNE HESS,

Plaintiff,

-against-

POLICE OFFICER NABIL LAAFAR, Shield No. 15663,
SERGEANT ALEXI SERPANI, Shield No. 3257, POLICE
OFFICER ERIC NICHOLAS and POLICE OFFICER
JOHN DOE 1-10,

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, JOANNE HESS, by her attorneys, Caitlin Robin & Associates, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution. On July 25, 2018, at approximately 6:00 p.m., plaintiff Joanne Hess was subjected to an unlawful stop, frisk, search, detention, and false imprisonment, while lawfully present in the vicinity of 325 76th Street, in Brooklyn, New York. Plaintiff spent approximately 20 hours unlawfully in police custody. Thereafter, the defendant police officers denied plaintiff the right to a fair trial by forwarding false information to the District Attorney's Office. All charges against Plaintiff were dismissed and sealed on March 27, 2019. Plaintiff was deprived of her constitutional rights when the individual defendants unlawfully stopped, questioned, frisked, searched, unlawfully arrested, maliciously prosecuted, and denied the plaintiff the right to a fair trial in violation of the Fourth and Fourteenth Amendments to the United States Constitution and in violation of New York State Law.

PARTIES

2. Plaintiff JOANNE HESS is a resident of the State of New York.

3. POLICE OFFICER NABIL LAAFAR, Shield No. 15663, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. On the date of the subject incident POLICE OFFICER NABIL LAAFAR, Shield No. 15663, was assigned to the 68th Precinct.

5. POLICE OFFICER NABIL LAAFAR, Shield No. 15663, is being sued in his individual and official capacities.

6. SERGEANT ALEXI SERPANI, Shield No. 3257, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. On the date of the subject incident SERGEANT ALEXI SERPANI, Shield No. 3257, was assigned to the 68th Precinct.

8. SERGEANT ALEXI SERPANI, Shield No. 3257, is being sued in his individual and official capacities.

9. POLICE OFFICER ERIC MILLER, Shield 15667, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. On the date of the subject incident POLICE OFFICER ERIC MILLER, Shield 15667, was assigned to the 68th Precinct.

11. POLICE OFFICER ERIC MILLER, Shield 15667, is being sued in his individual and official capacities.

12. POLICE OFFICER JOHN DOE 1-10, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. On the date of the subject incident, POLICE OFFICER JOHN DOE 1-10, was assigned to the 73rd Precinct.

14. POLICE OFFICER JOHN DOE 1-10, is being sued in her individual and official capacities.

15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

16. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

17. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

18. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

19. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

20. On July 25, 2018, at approximately 6:00 p.m., plaintiff was lawfully inside her apartment at 325 76th Street, in Brooklyn, New York when the defendant police officers unlawfully approached plaintiff without reasonable suspicion or probable cause.

21. At no time prior to being stopped by the officers did plaintiff commit a crime or behave in a manner that gave the police officers a reasonable and objective basis to believe She had committed or was committing a crime.

22. The Defendant Police Officers knocked on Plaintiff's apartment door and asked, "Did you text your ex boyfriend?"

23. The Plaintiff responded, "Yes, what is this about?"

24. Defendant Police Officers then forcibly grabbed Plaintiff and unlawfully handcuffed her and placed her under arrest.

25. At no point in time did plaintiff resist arrest in any way.

26. Defendants then drove Plaintiff to the 68th Precinct.

27. At the 68th precinct, plaintiff was fingerprinted, photographed, and unlawfully detained in a holding cell.

28. Thereafter Plaintiff was shackled around her legs, and transferred to Kings County Central Booking.

29. The defendant police officers falsely stated to the King's County District Attorney's Office that plaintiff had committed the crimes of stalking and harassment despite knowing that they lacked a legal and a factual basis to allege that plaintiff committed any crime.

30. On March 17, 2019, at approximately 12:00 p.m., after approximately 20 hours in police custody, plaintiff was arraigned in King's County Criminal Court and the Judge released Ms. Hess on her own recognizance.

31. Plaintiff was unlawfully charged with Harassment and Stalking.

32. The Police Officers knew there was no probable cause to arrest the Plaintiff, based on the alleged text message.

33. Upon information and belief, Defendant Police Officer Eric Miller is personal friends with the ex-boyfriend of the Plaintiff, Louis Guida.

34. Upon information and belief, Defendant Miller went to high school with Louis Guida.

35. Defendant Police Officer Eric Miller and Louis Guida are Facebook friends.

36. Upon information and belief, although it was obvious that there was no probable cause to arrest the Plaintiff for any crime whatsoever, Defendant Police Officer Miller illegally colluded with other Defendant Officers from the 68 Precinct to effectuate the unlawful arrest of Plaintiff, as a favor to his friend.

37. Thereafter, Plaintiff was forced to hire a private criminal defense lawyer for \$10,000.00.

38. On March 27, 2019 all criminal charges against Plaintiff were dismissed and sealed.

39. Plaintiff was forced to see a therapist and acupuncturist as a result of the emotional damages caused by Defendants.

40. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, false arrest, denial of fair trial, and excessive force used against plaintiff.

41. The unlawful stop, question, frisk, search, false arrest, false imprisonment, unlawful seizure, denial of fair trial, and excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, subjected to denial of his due process rights and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

44. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

46. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

47. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

48. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

49. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

52. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

53. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution

54. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

55. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

56. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

58. The illegal approach, pursuit, stop and search inside plaintiff's, pockets, inside of the waistband of her pants and underneath her clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

59. Defendants lacked probable cause to search plaintiff.

60. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

63. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Denial of Right to Fair Trial

64. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 63 with the same force and effect as if fully set forth herein.

65. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the King's County District Attorney's Office.

66. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the King's County District Attorney's Office.

67. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the King's County District Attorney's Office.

68. In withholding/creating false evidence against plaintiff JOANNE HESS and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

69. As a result of the foregoing, plaintiff JOANNE HESS, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of her constitutional rights.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. The use of excessive force by defendants by grabbing plaintiff without her consent, pushing her, causing her to suffer physical injuries was an objectively unreasonable physical seizure of plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

75. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SEVEHTH CAUSE OF ACTION

Failure to Intervene

76. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

78. Defendants failed to intervene to prevent the unlawful conduct described herein.

79. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, she was put in fear of her safety, and she was humiliated and subject to other physical constraints.

80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

EIGHTH CAUSE OF ACTION**Malicious Prosecution**

82. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 81 with the same force and effect as if more fully set forth at length herein.

83. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

84. Defendants commenced and continued a criminal proceeding against plaintiff.

85. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which they were prosecuted.

86. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

87. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

88. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

89. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

90. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

91. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff JOANNE HESS demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate

under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 28, 2019

By: 

CAITLIN ROBIN, ESQ.
CAITLIN ROBIN & ASSOCIATES PLLC
Attorney for Plaintiff
30 Broad Street, Suite 702
New York, New York 10004
(646)-524-6026

TO: POLICE OFFICER NABIL LAAFAR, Shield No. 15663, 68th Precinct, 333 65th Street,
Brooklyn, New York 11220

SERGEANT ALEXI SERPANI, Shield No. 3257, 68th Precinct, 333 65th Street, Brooklyn,
New York 11220

POLICE OFFICER ERIC MILLER, Shield 15667, 68th Precinct, 333 65th Street, Brooklyn,
New York 11220

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **CAITLIN ROBIN & ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
August 28, 2019



CAITLIN ROBIN, ESQ.

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SUPREME COURT OF THE STATE OF NEW YORK
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-against-

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Shield No. 3257, POLICE OFFICER ERIC MILLER, Shield 15667 and POLICE
OFFICER JOHN DOE 1-10,

Defendants.

VERIFIED SUMMONS AND COMPLAINT

CAITLIN ROBIN & ASSOCIATES, PLLC
Attorneys for Plaintiff
JOANNE HESS
30 Broad Street, Suite 702
New York, NY 10004
(646) 524-6026
